

Right to Food and Food Sovereignty Act, 2018

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An Act Made to Provide for the Right to Food and Food Sovereignty

Preamble: Whereas, it is desirable to make legal provisions regarding the implementation of the fundamental rights of citizens relating to food, food security and food sovereignty provided under the Constitution of Nepal, and for the creation of appropriate mechanisms for that purpose, and to ensure the access of citizens to food;

Now, therefore, the Federal Parliament has enacted this Act. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "Right to Food and Food Sovereignty Act, 2075".

(2) This Act shall come into force immediately. 2. Definition: Unless the subject or context otherwise requires, in this Act, -

(a) "Basic Food" means the food items specified by the Government of Nepal, by publishing a notice in the Nepal Gazette, from time to time.

(b) "Farmer" means a citizen who makes agriculture his/her main profession or occupation and earns a livelihood from it, and the term also denotes a member of the family dependent on such citizen, or a citizen who labors in agricultural work for six months or more in a year, or a citizen who manufactures traditional agricultural tools, or a member of the family dependent on such citizen.

(c) "Agricultural Land" means land used for agriculture, producing agricultural products, or designated for use in agricultural work pursuant to prevailing law.

(d) "Food" means a processed, semi-processed, or unprocessed substance intended for human consumption, culturally acceptable, obtained from biological sources, and the term also denotes raw materials used in the preparation, processing, or production of such substance.

(e) "Food Sovereignty" means the following rights enjoyed or exercised by farmers concerning the food production and distribution system:

- (1) Participating in the policy-making process related to food,
- (2) Choosing any occupation related to the food production or distribution system,
- (3) Selecting agricultural land, seeds, technology, and tools,
- (4) Being free from the adverse effects of globalization or commercialization of agricultural business.

(f) "Food Security" means the physical and economic access of every person to the food necessary to lead an active and healthy human life.

(g) "Prescribed" or "As Prescribed" means prescribed or as prescribed in the Rules made under this Act.

(h) "Council" means the National Food Council pursuant to Section 32.

(i) "Ministry" means the Ministry of the Government of Nepal dealing with agriculture-related subjects.

(j) "Targeted Household" means households identified pursuant to Section 5.

(k) "Local Level" means Rural Municipality or Municipality. Chapter-2

Protection from the Right to Food and Food Insecurity

3.

Respect, Protection and Fulfillment of Right relating to Food: (1) Every citizen shall have the right to food and the right to food security. (2) For the respect, protection, and fulfillment of the right as per sub-section (1), the Government of Nepal, Provincial Government, and Local Level shall make necessary arrangements in mutual coordination. (3) Without adversely affecting the generality of sub-section (1), every citizen shall have the following rights relating to food and food security: (a) Having regular access to adequate, nutritious, and quality food without discrimination, (b) Being free from hunger, (c) Being safe from situations where life is endangered due to lack of food, (d) Persons or families at risk of starvation or food insecurity receiving sustainable access to food and nutritional assistance, (e) Using culturally acceptable food. 4. Prevention and Control of Starvation: The Government of Nepal, Provincial Government, and Local Level shall, in mutual coordination and on a priority basis, carry out the following tasks for the prevention and control of starvation: (a) Regularly identifying and maintaining records of individuals, families, communities, and areas affected by or at risk of starvation, (b) Making arrangements for the stockpiling of food necessary to control starvation or the risk of starvation, (c) Making arrangements for the distribution of food to control starvation or the risk of starvation, (d) Adopting immediate, short-term, and long-term measures for the prevention and control of starvation. 5.

Identification of Targeted Households: (1) The Local Level shall, as prescribed, identify targeted households within its jurisdiction that are at risk of food insecurity due to poverty, geographical remoteness, disaster, or any other similar reason, and maintain records thereof in the prescribed format. (2) Details of the records pursuant to sub-section (1) shall also be sent to the Provincial Food Council pursuant to Section 34 and the Ministry for record-keeping. (3) If it is found that the records pursuant to sub-section (1) include details of households not at risk of food insecurity, or if a household so recorded ceases to qualify as a targeted household for any reason, the Local Level may, in either case, remove the details of such household from the record. (4) Based on the records received pursuant to sub-section (2), each Province shall maintain a consolidated and updated record of targeted households at risk of food insecurity within its province, and the Ministry shall maintain a consolidated and updated record for all of Nepal. (5) The record pursuant to this section shall be updated by the Local Level from time to time, and information thereof shall be provided to the Provincial Food Council and the Government of Nepal. (6) The Government of Nepal may develop necessary systems to maintain records pursuant to this section through electronic means as well. (7) Other bases and procedures for the identification of targeted households shall be as prescribed. 6. Food Assistance Identity Card: (1) The Local Level shall issue a Food Assistance Identity Card in the prescribed format based on the updated details of targeted households. (2) While issuing the identity card pursuant to sub-section (1), if the

targeted household has a female member who has completed eighteen years of age, the Food Assistance Identity Card shall be issued in the name of the eldest such female member; and if there is no female member who has completed eighteen years of age, it shall be issued in the name of the eldest member among other family members, as prescribed: Provided that, in a situation where the targeted household has no member who has reached the age of eighteen years, nothing written in this sub-section shall prevent the issuance of a Food Assistance Identity Card in the name of a minor member of such household. (3) If an identity card has been issued in the name of another member pursuant to sub-section (2), after a female member reaches the age of eighteen years, the identity card issued in the name of the said other member shall be cancelled, and an identity card shall be issued in the name of such female member. 7.

Providing Food Assistance Free of Cost or at Concessional Rate: (1) The Government of Nepal, Provincial Government, or Local Level shall provide food assistance to targeted households at a concessional rate and to specific types of targeted households free of cost, as prescribed. (2) Notwithstanding anything contained in sub-section (1), in the event a disaster of any kind occurs in any area or at any Local Level and the Government of Nepal declares it a disaster-affected area, throughout the duration of such situation, and in the event a food crisis-affected area is declared, throughout the duration of such crisis, the individuals and families residing in such area shall be provided with food assistance free of cost or at a concessional rate, as prescribed. (3) When providing food assistance free of cost or at a concessional rate pursuant to sub-section (1) or (2), the Government of Nepal or the Provincial Government shall make arrangements for distribution through the Local Level. (4) The Government of Nepal, Provincial Government, or Local Level may, from time to time, review the form and quantity of free or concessional food assistance provided pursuant to this section, based on the immediate needs of individuals or families in the prescribed area, geographical situation, availability of food, and traditional or cultural acceptability. 8. **Prescribing Nutritional Standards of Food:** The standard of nutritional elements of food required for the purpose of providing food assistance pursuant to Section 7 shall be as prescribed. 9. **Emergency Food and Nutritional Security:** (1) The Government of Nepal, Provincial Government, and Local Level shall, in mutual coordination, adopt necessary measures to mitigate any adverse effects that may occur to food and nutritional security for any reason and to make food available as soon as possible in emergency situations. Explanation: For the purpose of this section, "Emergency Situation" means the period declared by the Government of Nepal as an emergency situation in any area due to disasters such as earthquake, flood, landslide, snowfall, cold wave, or fire. (2) The Government of Nepal, Provincial Government, and Local Level shall, in mutual coordination, expand and modernize their food storage facilities and stockpile food necessary to meet nutritional needs in any circumstance. (3) The coordination of the work of providing emergency food and nutritional assistance pursuant to this section shall be carried out by the prescribed body. (4) The Government of Nepal may mobilize national and international assistance as necessary to strengthen the situation of food and nutritional security in an emergency situation. 10.

May Declare Food Crisis-Affected Area: (1) If a food crisis arises in any area due to causes such as earthquake, excessive rainfall, drought, flood, landslide, fire, epidemic, famine, the Government of Nepal may declare such area as a food crisis-affected area for a specified period. (2) Other arrangements relating to the management of necessary food and nutritional security in a food crisis-affected area shall be as prescribed. 11. **Prioritizing Local Food:** (1) While making arrangements for food and nutrition pursuant to this Act, priority shall be given to the distribution of traditional food produced at the local level. (2) Provisions relating to making arrangements for traditional food and nutrition produced at the local level shall be as prescribed. Chapter-3 Protection and Promotion of the Right to Food Sovereignty 12. **Respect, Protection, and Fulfillment of the Right to Food Sovereignty:** (1) Every farmer shall have the right to food sovereignty. (2) Without

adversely affecting the generality of sub-section (1), every farmer shall have the following rights related to food sovereignty: (a) Every farmer or food producer receives recognition and respect, (b) Participating in the food and agriculture system, (c) Having access to the means and resources necessary for agricultural work, (d) Choosing local seeds, technology, tools, and agricultural species, and obtaining protection of their intellectual property, (e) Preserving traditional and indigenous food, (f) Obtaining protection against acts that arbitrarily deprive him/her of the agricultural profession. 13.

Protection of the Agricultural Profession and Promotion of Farmers' Standard of Living: The Government of Nepal, Provincial Government, and Local Level shall, in mutual coordination, make arrangements as follows based on available resources to protect the agricultural profession and promote the standard of living of farmers: (a) Increasing investment in the field of agriculture and food production, (b) Expanding the sustainable use of and access to advanced technology, environment-friendly fertilizers, various types of seeds, pesticides or agricultural materials in food production, (c) Giving special recognition to cash crops or exportable crops, (d) Expanding the easy and simple access of farmers to seed, crop, or livestock/poultry insurance, (e) Enhancing farmers' access to agricultural markets, (f) Expanding farmers' access to the infrastructure necessary for organic farming, (g) Providing protection from harm caused by chemical, pesticide-laden, or genetically modified organism (GMO) farming, (h) Fixing the minimum support price for specified crops that can be stored for a long period, (i) Developing a system for early warning regarding weather including excessive rainfall, drought, or dry spells, (j) Promoting a sustainable agricultural system based on biodiversity, (k) Commercializing, industrializing, modernizing, and technologizing agriculture to protect the agricultural profession, (l) Expanding access to agricultural land and materials for female farmers and landless families dependent on agriculture on a priority basis, (m) Preventing the use of water resources used in the production of agricultural crops, fruits, and livestock/poultry for other purposes that would be detrimental to such production, (n) Making arrangements to provide farmers with compensation as prescribed in prescribed circumstances against loss or damage to agricultural produce or crops, (o) Fixing the support price of agricultural products based on the cost of production. 14. Identification and Respect of Farmers: (1) The Government of Nepal shall identify and classify farmers as prescribed. (2) The Local Level shall issue identity cards based on the classification pursuant to sub-section (1). (3) Based on the classification pursuant to sub-section (1), a farmer shall be provided with concessions, exemptions, facilities available from the state, and a contributory pension as per prevailing law. (4) The validity period of the identity card, renewal, and other related arrangements shall be as prescribed. 15.

Sustainable Use of Agricultural Land: For the protection and sustainable use of agricultural land, the Government of Nepal, Provincial Government, and Local Level shall, in mutual coordination, carry out the following tasks: (a) Encouraging or promoting the cultivation of crops on agricultural land identified pursuant to prevailing law, (b) Scientifically identifying agricultural land and separating or classifying it, (c) Preventing agricultural land from being left fallow, and preventing its use for purposes other than those prescribed pursuant to prevailing law concerning land use, (d) Preventing the fragmentation of agricultural land, (e) Conducting development and construction works in a manner that does not adversely affect the National Food Plan pursuant to Section 21, (f) Raising awareness about the use of agricultural land, (g) Reducing subsidies, facilities, and assistance provided by the government to landowners who, without reasonable cause, do not cultivate land classified for agricultural purposes, (h) Promoting cooperative farming, contractual farming, lease farming, or collective farming to ensure maximum utilization of productive land that remains fallow. 16. Promotion of Local Agricultural Crops and Livestock Products: For the promotion of local agricultural crops and livestock products, the Government of Nepal, Provincial Government, and Local Level shall adopt the following measures: (a) Promoting local agricultural and livestock products and their

marketing, (b) Ensuring easy access for consumers to local agricultural and livestock products, (c) Creating an environment where farmers can sell their products directly to consumers from the farm or field, (d) Promoting traditional agricultural markets and weekly markets (haat bazaars), (e) Preserving local knowledge related to agricultural production and traditional food culture, (f) Promoting agro-tourism by utilizing food produced at the local level. 17. Responsibility for Sustainable Management of Agricultural Land: (1) Subject to Federal and Provincial laws, the responsibility for sustainable management of agricultural land shall be of the Local Level. (2) To fulfill the responsibility pursuant to sub-section (1), the Local Level shall carry out the following tasks: (a) Preparing an inventory of agricultural land, (b) Identifying fallow land and other land at the local level, (c) Maintaining records of land identified pursuant to clauses (a) and (b), (d) Updating land-related records, (e) Performing or causing to perform other necessary work for the effective management of fallow land. 18. Operation of Targeted Agricultural Development Programs: (1) The Government of Nepal, Provincial Government, and Local Level shall formulate and implement targeted agricultural development programs for the protection of the rights and interests of Dalit, endangered, indigenous farmers, or landless farmers. (2) Other arrangements relating to the program pursuant to sub-section (1) shall be as prescribed. 19.

Mitigation of Effects Caused by Climate Change: The Government of Nepal shall make necessary arrangements to adopt preventive measures for the mitigation of adverse effects or risks that may occur to food production due to climate change. 20. Compensation to be Provided: (1) If any government institution, body, company, or firm recommends seeds, and cultivation is done according to the recommended method, procedure, or manner in the recommended area and time, or if seeds, methods, procedures, or fertilizers recommended by such institution, body, company, or firm are used in the recommended manner, and if someone's crop production fails or there is a substantial decrease in crop production, the institution, body, company, or firm that recommended such seeds, methods, procedures, or fertilizers shall provide compensation. (2) Other arrangements relating to the compensation to be provided pursuant to sub-section (1) shall be as prescribed. Chapter-4 Implementation of the Right to Food 21. National Food Plan: (1) The Government of Nepal shall formulate a National Food Plan in coordination with the bodies of the Federation, Province, and Local Level related to food. (2) While coordinating pursuant to sub-section (1), consultation shall be held with other governmental, non-governmental, or private-level bodies or institutions as necessary. (3) The subjects to be included in the National Food Plan pursuant to sub-section (1) shall be as prescribed. (4) While formulating the National Food Plan pursuant to sub-section (1), the indicators for measuring and monitoring progress made in the implementation of the right to food shall be taken as a basis. (5) The Government of Nepal shall include subjects related to the right to food, food and nutritional security, and the promotion of the right to food sovereignty in periodic development plans. 22. Operation of Food and Nutritional Security Programs: The Local Level shall, each year, operate necessary programs as prescribed for food and nutritional security. 23. Indicators for Monitoring the Right to Food: (1) The Government of Nepal shall, in consultation with the Council and other concerned bodies, prepare monitoring indicators for the right to food and the right to food sovereignty to monitor the implementation of this Act. (2) The rights monitoring indicators pursuant to sub-section (1) shall be made public for the information of the general public. 24. Food and Nutrition Education and Information: The Government of Nepal, Provincial Government, and Local Level shall disseminate information and educational material related to the right to food from time to time. 25.

Research and Development of Scientific Technology: The Government of Nepal, Provincial Government, and Local Level shall make necessary arrangements for the study, research, and development of scientific technology necessary for the sustainable development of agriculture, enhancement of food production, or promotion of food and nutritional security. Chapter-5 Food Availability, Supply, and Distribution System 26. Food Storage and Stockpile Arrangements: The Government of Nepal and the Provincial Government shall

make arrangements for food stockpiling as prescribed, to provide food for the purposes of Section 7, 9, or 10 and to meet the need for food during times of crisis. 27. Food Procurement: (1) Food required for storage and stockpiling pursuant to Section 26 shall be procured domestically. (2) Notwithstanding anything contained in sub-section (1), if sufficient food is not available from domestic procurement, food may be imported. 28. Food Transportation and Distribution: The distribution process of food stockpiled and stored pursuant to Section 26 by the Government of Nepal and the Provincial Government shall be as prescribed. 29. Price Stability of Basic Food: The responsibility to maintain stability in the price of basic food shall be of the Government of Nepal. 30. Arrangements for Food Distribution: (1) The Government of Nepal, Provincial Government, and Local Level shall make arrangements for food distribution through fair price shops or public food distribution centers, as prescribed. (2) While operating fair price shops or public food distribution centers pursuant to sub-section (1), special priority may be given to women's groups or agricultural cooperatives. 31. Public Disclosure of Details: (1) The Government of Nepal, Provincial Government, or Local Level shall prepare and update the following details relating to food distributed pursuant to this Chapter: (a) Status of food stockpiled, (b) Quantity of food stockpiled, (c) Price of food, (d) System of food distribution, and (e) Type of food. (2) The details pursuant to sub-section (1) shall be made public for the information of the general public. Chapter-6 National Food Council, Provincial Food Council, and Local Food Coordination Committee 32. Formation of National Food Council: (1) For the purpose of systematizing the work of protecting, promoting, and fulfilling the rights related to food security and food sovereignty, a National Food Council shall be formed as prescribed under the chairpersonship of the Minister of the Government of Nepal dealing with agriculture-related subjects. (2) The functions, duties, and powers of the Council shall be as prescribed. 33.

Monitoring and Supervision: (1) For the purpose of regularly monitoring and supervising the operation of the system of food availability, stockpiling, supply, and distribution, the Council may form a sub-committee or designate an inspection officer as prescribed. (2) The sub-committee or officer monitoring or inspecting pursuant to sub-section (1) shall conduct the monitoring or inspection and submit a report thereof to the Council. 34. Provisions relating to Provincial Food Council: (1) For the protection, promotion, and fulfillment of rights under this Act at the provincial level, a Provincial Food Council shall be formed in each Province under the chairpersonship of the Minister dealing with agriculture subjects. (2) Other provisions relating to the Provincial Food Council shall be as determined by the Provincial Government. 35. Functions, Duties, and Powers of Provincial Food Council: The functions, duties, and powers of the Provincial Food Council shall be as determined by the Provincial Government. 36. Local Food Coordination Committee: (1) For the purpose of protecting and promoting the right to food, food security, and the right to food sovereignty at the Local Level, and to facilitate the food supply and distribution system at the local level, a Food Coordination Committee shall be formed at the Local Level under the chairpersonship of the Mayor of the Municipality or the Chairperson of the Rural Municipality. (2) The secretariat of the Local Food Coordination Committee shall remain in the concerned Municipality or Rural Municipality. (3) Provisions relating to the formation, functions, duties, and powers of the Local Food Coordination Committee shall be as determined by the concerned Local Level. 37. May Form Sub-committee or Task Force or Expert Group: (1) The Council or the Provincial Food Council may, as necessary, form a sub-committee or task force or expert group to conduct its work. (2) The terms of reference and working procedures of the sub-committee, task force, or expert group formed pursuant to sub-section (1) shall be as determined by the Council at the time of formation. 38. Delegation of Powers: The Council may delegate some of the powers vested in it to a sub-committee or any other officer-level employee of the Council, as necessary. 39. Provisions relating to Employees: The Government of Nepal shall provide the employees necessary for the smooth operation of the work of the Council. Chapter-7 Offenses and Penalties 40.

Offenses: If any person commits any of the following acts, he/she shall be deemed to have committed an offense under this Act: (a) Depriving someone of access to essential food, causing serious harm or creating a situation of famine, (b) Seizing, destroying, or misusing food items stockpiled and collected for the purpose of emergency assistance, (c) Creating obstruction in the distribution of emergency food assistance, (d) Creating organized or unorganized obstacles in the transportation, supply, distribution, and marketing of basic food items, (e) Making someone homeless, thereby diverting them from their livelihood base, (f) Failing to distribute food required to be distributed pursuant to Section 7 to the targeted class or backward class, (g) Committing any other act contrary to this Act or the Rules made under this Act. 41. Investigation and Filing of Cases: (1) Investigation of cases under this Act shall be conducted by the Inspection Officer pursuant to Section 44. (2) While investigating a case pursuant to sub-section (1), the Inspection Officer shall file the case in the concerned District Court within thirty-five days from the date of receipt of the complaint. (3) While filing a case pursuant to sub-section (2), the Inspection Officer shall obtain the opinion of the Government Attorney. 42. Penalty: If any person commits an offense pursuant to Section 40, the penalty shall be as follows based on the severity of the offense: (a) For committing or causing to commit an offense pursuant to clause (a) ? imprisonment for up to ten years and a fine of up to ten lakh rupees, (b) For committing or causing to commit an offense pursuant to clause (b), (c), or (d) ? imprisonment for up to three years and a fine of up to three lakh rupees, (c) For committing an offense pursuant to clause (e) ? imprisonment for up to five years and a fine of up to five lakh rupees, (d) For committing an offense pursuant to clauses (f) and (g) ? imprisonment for up to one year and a fine of up to one lakh rupees. 43. Compensation: (1) If any person suffers any kind of harm or loss due to the commission of an offense under this Act, an application may be filed before the adjudicating officer for compensation for such harm or loss. (2) The criteria for compensation to be provided pursuant to sub-section (1) shall be as prescribed. Chapter-8 Miscellaneous 44.